

23NWCV04142 23NWCV04142

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 23NWCV04142 Hearing Date: September 11, 2026 Dept: C

JESUS ORTEGA vs SEAN

COHEN, Case No. 23NWCV04142

Plaintiff Jesus Ortega moves

for an order granting leave to file a Second Amended Complaint. The Proposed Verified Second Amended Complaint (1) names ALLSTATE REALTY GROUP, INC., already brought into the action as a Doe defendant and the beneficiary prosecuting foreclosure under the disputed junior deed of trust; (2) adds MEHRAN FROZANFAR, the identified lender and beneficiary of the interrelated first-position loan; (3) incorporates facts and documents clarified during the preliminary-injunction and undertaking proceedings; and (4) conforms the causes of action and requested equitable relief to the parties' respective roles and the two liens affecting the Property. In opposition, ALLSTATE REALTY GROUP, INC. argues that Plaintiff is judicially estopped from presenting the SAC as it is verified and the factual claims in the SAC contradict the claims made in the FAC. Given the liberal policy of the courts towards allowing amendments, and in the absence of prejudice to the opposing party, the motion for leave to amend is GRANTED. Allstate may demur to the SAC on the grounds asserted in the opposition. Plaintiff is ordered to separately file and serve the Proposed Verified Second Amended Complaint within ten days. Moving party to give notice.